

26STCV03293 26STCV03293

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 26STCV03293 Hearing Date: September 4, 2026 Dept: 529

DOMINIQUE IVERSON-KELLEY VS AIDS

HEALTHCARE FOUNDATION, ET AL.

defendant aids

healthcare foundation's demurrer to plaintiff's first amended complaint

Date of Hearing: September

4, 2026 Trial Date: None

set.

Department: 529 Case

No.: 26STCV03293

Moving Party: Defendants

against AIDS Healthcare Foundation, David Marin, Liliana Zoldi, and Jenae Allen

Responding Party: Plaintiff

Dominique Iverson-Kelley

Meet and Confer: Yes.[1]

BACKGROUND

On January 30, 2026, Plaintiff

Dominique Iverson-Kelley filed a complaint against AIDS Healthcare Foundation,

David Marin, Liliana Zoldi, and Jenae Allen for various violations of FEHA,

intentional infliction of emotional distress, negligent hiring retention and/or

supervision, negligence, wrongful termination, and violation of Business and

Professions Code 17200. On May 11, 2026, Plaintiff filed a First Amended Complaint adding causes of action for invasion of privacy and violation of the Confidentiality of Medical Information Act and removing the claim for negligent hiring, retention and/or supervision.

[Tentative] Ruling

Defendants AIDS Healthcare Foundation,
David Marin, Liliana Zoldi and Jenae Allen's Demurrer to the First Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

DISCUSSION

Defendants AIDS Healthcare Foundation,
David Marin, Liliana Zoldi and Jenae Allen demur to the twelfth cause of action for negligence by Plaintiff Dominique Iverson-Kelley on the grounds Plaintiff fails to state facts sufficient to constitute a negligence claim against Defendants.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Defendants argue Plaintiff's twelfth cause of action for negligence fails as a matter of law because the California Workers' Compensation Act ("WCA") provides the "sole and exclusive remedy of the employee" against an employer for injuries sustained in the workplace.

(Labor Code §§ 3600(a), 3601, 3602(a), 5300.) The complaint alleges Plaintiff “suffered humiliation, emotional distress mental and physical pain, and anguish” as a result of defendants' negligence” and requests a “money judgment”. Defendants claim this type of conduct Plaintiff alleges here constitutes a “normal part of the employment relationship” and therefore, subject to the exclusive remedy provisions of the workers' compensation law. (See Charles J. Vacanti, M.D., Inc. v. State Camp. Ins. Fund (2001) 24 Cal.4th 800, 815.)

In opposition, Plaintiff argues Labor

Code sections 3600 and 3602 do not resolve whether an individual co-employee may be sued for tortious conduct. Instead, Section 3601 governs and that section makes workers' compensation the exclusive remedy for injury “against any other employee of the employer acting within the scope of his or her employment,” subject to enumerated exceptions. As a result, Plaintiff contends Defendants cannot establish co-employee immunity simply by asserting that Plaintiff was injured in the workplace or that some of the challenged conduct involved employment-related decisions. Moreover, Defendants ignore Paragraph 236 of the complaint, which alleges Defendants Marin, Zoldi and Allen “engaged in the foregoing conduct outside the scope of their employment, motivated by personal animus and not in furtherance of any legitimate employer interest,” and that “[t]heir conduct is therefore not shielded by workers' compensation exclusivity or any employer-based defense.” (FAC ¶236.) Additionally, Plaintiff contends Defendant AHF cannot demur to the cause of action as it is not even alleged against it. Independent of all of this, Plaintiff contends workers'-compensation exclusivity does not reach injuries arising from conduct that violates the FEHA. The California Supreme Court has held that discrimination in violation of the FEHA is not a normal incident of employment and it falls outside of the compensation bargain. (City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143, 1155.)

The court finds the demurrer should be sustained without leave to amend. Plaintiff's negligence claims against her co-workers and supervisors are subject to workers-compensative exclusivity. The only legal basis for claims against co-workers relevant here is found in the FEHA. That statute remains the sole basis for the claims of harassment, discrimination and retaliation which plaintiff seeks to pursue here against these co-workers and managers.

points out that Defendant did not meet and confer in person, by telephone or video conference as required by Code of Civil Procedure section 430.41(a). Instead, Defendant sent only an e-mail the same day the demurrer was signed, served and filed. The court admonishes Defendant to comply with all rules of court, including meeting and conferring. Because meet and confer obligations are required, the court will continue the matter the next time the parties fail to comply.